COMMONWEALTH OF PENNSYLVANIA
DEPARTMENT OF STATE
BUREAU OF PROFESSIONAL AND OCCUPATIONAL AFFAIRS

BEFORE THE STATE BOARD OF MEDICINE

IN THE MATTER OF THE REACTIVATION APPLICATION FOR A LICENSE TO PRACTICE AS A MEDICAL PHYSICIAN AND SURGEON OF ERIC WELLING, M.D.
CASE NO. 24-49-003930

FINAL ADJUDICATION AND ORDER

ARION R. CLAGGETT,
ACTING COMMISSIONER
BUREAU OF PROFESSIONAL AND OCCUPATIONAL AFFAIRS

MARK B. WOODLAND, M.S., M.D.
CHAIRPERSON
STATE BOARD OF MEDICINE

Post Office Box 2649
Harrisburg, Pennsylvania 17105-2649

DMW

Prothonotary Filed On:
Sep 20 2024 08:31 AM
Department of State

HISTORY

This matter comes before the State Board of Medicine ("Board") on the *Application for Reactivation of the License to Practice as a Medical Physician and Surgeon* ("reactivation application") filed by Eric Welling, M.D., ("Applicant"). On January 18, 2024, Applicant submitted a reactivation application to the Board for his license to practice as a medical physician and surgeon. By decision dated March 7, 2024, the Board provisionally denied Applicant's reactivation application. The reasons for the Board's provisional denial were: (1) failing to demonstrate qualifications or standards for a license by failing to prove that Applicant is of good moral character, (2) suspension of Applicant's license in another jurisdiction, and (3) Applicant's inability to practice with reasonable skill and safety to patients by reason of illness or addiction. On March 20, 2024, Applicant appealed the Board's provisional denial.

On March 21, 2024, the Board issued an *Order Delegating* the matter to a hearing examiner of the Bureau of Professional and Occupational Affairs to conduct a formal hearing and issue a *Proposed Adjudication and Order* ("proposed report"). By Notice of Hearing dated April 3, 2024, this matter was scheduled for an in-person hearing on May 14, 2024. By Order dated April 10, 2024, the matter was converted from in-person to video at the parties' consent. A video hearing was held as scheduled on May 14, 2024. Board Exhibits B-1 through B-3 were admitted into evidence by the hearing examiner. Jason T. Anderson, Esquire, represented the Commonwealth and did not present any witnesses or additional exhibits. Applicant represented himself and testified on his behalf. Applicant also presented Applicant Exhibits 1 through 3,

DOS Prothonotary:
Sep 20 2024

which were admitted over the objection of the Commonwealth.[1] The parties waived the filing of post-hearing briefs and the record closed with the filing of the hearing transcript ("N.T.") on May 22, 20224.

On June 18, 2024, the hearing examiner issued a *Proposed Adjudication and Order,* which recommended that the Board grant the reactivation application. On June 24, 2024, the Board issued a *Notice of Intent to Review* the proposed report. Neither party filed a *Brief on Exceptions* to the hearing examiner's proposed report. The Board reviewed the entire record in this matter and conducted deliberations during their regularly scheduled Board meeting on August 6, 2024. While the Board agrees with the hearing examiner's proposed conclusion in this matter, the Board does not agree with the rationale. This *Final Adjudication and Order* rewrites the hearing examiner's proposed report in its entirety[2] to discuss its reasons for reactivation. The Board now issues this *Final Adjudication and Order* in disposition of this matter.

1 Applicant also moved for admission of Applicant Exhibit 4 during the hearing, a letter from Mark Chase, PhD, MBA, offering expert testimony on behalf of Dr. Welling. The exhibit was objected to on the basis that Dr. Chase was not present, and it was not admitted into evidence.

2 The Board uses much of the hearing examiner's proposed findings of fact given their accuracy and the fact that they appropriately support the Board's conclusion in this matter.

DOS Prothonotary:
Sep 20 2024

FINDINGS OF FACT

Applicant's Current Pennsylvania Licensure Status

1. Applicant holds a license to practice medicine and surgery in the Commonwealth of Pennsylvania, license number MD477850. (Official notice - Board records[3]).

2. Applicant's Pennsylvania license was originally issued on May 2, 2022, and expired December 31, 2022. (Board records; N.T. 20).

3. Applicant is an anesthesiologist. (N.T. 27, 36).

4. Applicant's Pennsylvania license is currently expired. (Board records, N.T. 35).

5. Applicant applied for the reactivation of his Pennsylvania medical license on or about January 18, 2024. (Board records; Board Ex. 1).

6. By correspondence dated March 7, 2024, the Board provisionally denied Applicant's reactivation application based on Chapter 63 of the Medical Practice Act of 1985 ("Act"), 63 P.S. §§ 422.41(1), (4) and (5) and 63 P.S. § 422.22(b). (Board records; Board Ex. 2).

7. On March 20, 2024, Applicant appealed the Board's provisional denial. (Board Ex. 3).

---

3 Official notice is taken of the Board's licensure records about Applicant per the rule that a licensing board may take official notice of its own records. General Rules of Administrative Practice and Procedure, 1 Pa. Code § 31.1 *et seq.*, at § 35.173; *see also Falasco v. Commonwealth of Pennsylvania Board of Probation and Parole*, 521 A.2d 991 (Pa. Cmwlth. 1987) (The doctrine of official notice allows an agency to take official notice of facts which are obvious and notorious to an expert in the agency's field and those facts contained in reports and records in the agency's files); *Gleeson v. State Bd. of Medicine*, 900 A.2d 430, 440 (Pa. Cmwlth. 2006), *appeal denied*, 917 A.2d 316 (Pa. 2007) (licensing board may take official notice of its records). All subsequent such references will be cited as "Board records."

DOS Prothonotary:
Sep 20 2024

Applicant's Professional History and Discipline

8. In 2021, Applicant was employed at Davis Hospital in Layton, Utah and he was trained on an automatic anesthesia record-keeping system called SIS, which used a drug dispensing computer system called Pyxis. (N.T. 13-14).

9. Proper use of the systems required Applicant to get the medications from Pyxis and then log that into the SIS program upon providing it to the patient. (N.T. 14).

10. Applicant had an unacceptable error rate in logging his anesthesia medications resulting in him being placed under a focus review from March 2021 to September 2021. (N.T. 14).

11. Applicant adjusted his in-room habits and shadowed three other anesthesiologists in an attempt to correct mistakes and retrain himself. (N.T. 14-15).

12. Applicant was also to receive a weekly email from the pharmacy director describing any errors regarding his prescription of anesthesia medications, which the Applicant later changed to his Steward Healthcare email address. (N.T. 15).

13. Applicant never tested positive for any controlled substances. (N.T. 15, 18).

14. Applicant did not check his Steward Healthcare email address and believed he had corrected the errors. (N.T. 15-16).

15. Applicant ultimately failed his peer review based on an 18% anesthesia medication discrepancy rate. (N.T. 16).

DOS Prothonotary:
Sep 20 2024

16. On or about October 25, 2021, Applicant's license was summarily suspended in Utah and he was sent to Acumen Assessments ("Acumen") for an evaluation. (Board Ex. 1; N.T. 17).

17. Acumen concluded that the Applicant needed to complete the following five things:

- Proper medication and psychotherapy,
- Construct a reasonable plan to prevent medication management problems,
- Take a leave of absence,
- Complete another peer review, and
- Complete partial inpatient for physicians in recovery.

(Board Ex. 1; N.T. 18, 32).

18. The Utah Medical Board ultimately allowed Applicant to keep his license, which is currently in good standing. (N.T. 19).

19. Applicant also had a medical license in Wyoming. (N.T. 19).

20. By Order dated July 22, 2022, the Wyoming Medical Board directed Applicant to complete an alcohol substance and mental health examination and be reevaluated by Acumen. (Board Ex. 1).

21. The Wyoming Medical Board found that Applicant failed to comply with attendance of a pre-approved alcohol substance and mental health examination by Acumen to determine his ability to practice safely and skillfully. (Board Ex. 1; N.T. 19-20).

22. The Wyoming Medical Board summarily suspended the Applicant's license on or

DOS Prothonotary:
Sep 20 2024

about November 4, 2022. (Board Ex. 1; N.T. 19-20).

23. Applicant appealed the Wyoming Medical Board decision and took a leave of absence from Davis Hospital. (N.T. 20).

24. Applicant subsequently applied for licenses in multiple states through the Interstate Medical Licensure Compact ("IMLC") and was granted licenses in the following states: Washington, Idaho, South Dakota, Tennessee, Kentucky, Michigan, and New Hampshire. (N.T. 20).

25. Applicant was offered a full-time job at the Michigan facility, but he accepted a full-time with US Anesthesia Partners ("USAP") working at Sunrise Hospital in Las Vegas, Nevada in August 2022. (N.T. 21, 23-24).

26. As a result of the Wyoming license suspension, other states participating in the IMLC also suspended his license, including Idaho, Washington, Kentucky, Tennessee, Michigan, and New Hampshire. (N.T. 21-22).

27. Nevada did not suspend the Applicant's license and instead required him to see a psychologist, which the Applicant did. (N.T. 22).

Current Status of Applicant's Out-of-State Medical and DEA Licenses

28. Applicant has active licenses to practice medicine in California, Nevada, and Utah. (N.T. 34).

29. Applicant has inactive licenses in Washington and Idaho. (N.T. 35).

DOS Prothonotary:
Sep 20 2024

30. Applicant has suspended licenses in Wyoming, South Dakota, Tennessee, Kentucky, New Hampshire, and Michigan. (N.T. 35).

31. Applicant has DEA licenses in Nevada and Utah. (N.T. 36).

32. Applicant has a pending DEA license in North Carolina. (N.T. 36).

Facts Material to Reinstatement

33. Applicant testified that he has complied with all five requirements from Acumen, including ongoing treatment with a psychiatrist and psychologist and continuing prevention of medication management. (N.T. 32-33, 37).

34. Applicant sees Mark Chase, a psychologist, as part of his aftercare program. (N.T. 38).

35. Applicant testified that he has been diagnosed with cyclothymia, which is a mild condition of bipolar and he has been prescribed medications and is compliant with medications for that condition. (N.T. 18, 37-38).

36. Applicant completed another assessment with the Professional Review Network in Lawrence, Kansas, which resulted in the same recommendations as Acumen. (N.T. 19)

37. Applicant has an internist who prescribes all personal medications to him or his family. (N.T. 37).

38. Applicant took a medical leave of absence until June 2022, when he was hired for locums practice at Upper Michigan Surgical Suites in Michigan, where he did not have to repeat

DOS Prothonotary:
Sep 20 2024

his errors from Davis Hospital because the Michigan facility used handwritten notes. (N.T. 20-21).

39. Applicant uses the Medaxion and Meditech systems for anesthesia record keeping at Sunrise Hospital and has not had any anesthesia charting errors while employed for USAP in Las Vegas, Nevada. (Applicant Exhibits 1-3; N.T. 22, 24).

40. Applicant has no pending criminal charges. (Board Ex. 1).

Administrative Due Process

41. A video hearing was held on May 14, 2024. (N.T. 1).

42. Applicant represented himself. (N.T. 2).

43. The Commonwealth was represented by Jason T. Anderson, Esquire. (N.T. 2).

44. The parties waived filing post-hearing briefs. (N.T. 46-47).

45. The Commonwealth did not make a recommendation in this case. (N.T. 47).

DOS Prothonotary:
Sep 20 2024

CONCLUSIONS OF LAW

1. The Board has jurisdiction in this matter. (Findings of Fact ["FOF"] Nos. 1 – 7).

2. Applicant received notice of this proceeding and was afforded an opportunity to be heard in accordance with section 4 of the Administrative Agency Law, 2 Pa.C.S. § 504. (FOF Nos. 41 – 45).

3. The record supports the granting of the reactivation application. (FOF Nos. 1-40).

DOS Prothonotary:
Sep 20 2024

DISCUSSION

On January 18, 2024, Dr. Welling applied to reactivate his Pennsylvania medical license, which expired on December 31, 2022. Section 16.15 of the Board's regulations provides, in pertinent part, as follows regarding the renewal[4] of the applicable license:

> (a) A person licensed, certified, or registered by the Board, shall register biennially to retain the right to engage in practice unless specifically exempted within this section. Initial registration shall automatically occur when the license, certificate, or registration is issued.
>
> ***
>
> (c.1) A licensee or certificate holder applying for biennial registration shall, as a condition of biennial registration, complete at least 2 hours of approved training in child abuse recognition and reporting in accordance with § 16.108(b) (relating to child abuse recognition and reporting--mandatory training requirement).
>
> ***
>
> (f) If all other conditions have been met, registered status will be restored upon the payment of fees and penalties which have accrued.
>
> ***
>
> (h) The holder of a license, certificate or registration applying to return to registered status is required to pay the current and back registration and penalty fees which are due, submit a notarized affidavit setting forth the period of time in which the individual did not practice in this Commonwealth, submit a resume of activities since that person was last registered and comply with § 16.16(c) (relating to reporting of disciplinary actions, criminal dispositions and other licenses, certificates or authorizations to practice), absent the 30-day grace period provided for in this subsection.
>
> (i) The licensee, registrant or certificate holder who seeks to update his registration will not be assessed a fee or penalty for a preceding biennial registration period in which that person did not engage in practice in this Commonwealth.
>
> (j) If the person has not been practicing in this Commonwealth for longer than 4 years, the Board may require that a personal interview be conducted by a designated Board member or representative to ascertain the physical and mental fitness of the applicant to practice in this Commonwealth.

49 Pa. Code § 16.15.

---

4 The Board notes that the MPA and Board regulations refer to biennial renewal as "registration," which is the term previously used for "renewal." The terms can be used interchangeably.

DOS Prothonotary:
Sep 20 2024

In accordance with the regulation, any person whose license under the Medical Practice Act of 1985 ("Act") has expired for failure to make biennial renewal will have the license restored upon satisfaction of specified conditions and payment of appropriate fees and penalties. 49 Pa. Code § 16.15(f). A physician seeking to reactivate an expired license must apply, pay the current and any back renewal fees, pay any penalty fees due, submit a notarized affidavit setting forth the period the individual did not practice in the Commonwealth, submit a resume of activities since the last renewal and comply with reporting requirements related to disciplinary actions, criminal disposition, and other licenses to practice. 49 Pa. Code § 16.15(h). A person who has not practiced for four or more years in the Commonwealth may also be subject to a personal interview by a Board member or representative to ascertain the physical and mental fitness of the applicant. 49 Pa. Code § 15(j).

In its provisional denial letter, the Board did not assert that Applicant failed to meet the reactivation requirements outlined in the Board's regulations. Instead, the Board provisionally denied Applicant's reactivation application on the authority set forth at 63 P.S. §§ 422.22 and 422.41.[5] Specifically, the Board provisionally denied the application because the Wyoming

---

5 **Section 422.22 – Licenses and certificates; general qualifications.**

* * * *

> (b) **Qualifications. - -** The board shall not issue a license or certificate to an applicant unless the applicant establishes with evidence, verified by an affidavit or affirmation of the applicant, that the applicant is of legal age, *is of good moral character* and is not addicted to the intemperate use of alcohol or the habitual use of narcotics or other habit-forming drugs and that the applicant has completed the educational requirements prescribed by the board and otherwise satisfies the qualifications for the license or certificate contained in or authorized by this act…..

63 P.S. § 422.22(b)

Section 422.41. – Reasons for refusal, revocation, suspension or other corrective actions against a licensee or certificate holder

DOS Prothonotary:
Sep 20 2024

Medical Board summarily suspended Applicant's license to practice as a physician in that state based on his failure to comply with the attendance of a pre-approved alcohol substance and mental health examination by Acumen to determine his ability to practice safely and skillfully. Following that decision, several other jurisdictions participating in the multi-state medical licensing compact suspended his license. This raised concerns to the Board that Applicant may be an immediate danger to the citizens of this Commonwealth should his license be reactivated.

"While it is true that a license reactivation or renewal is, for the most part, a ministerial act," and does not provide grounds for estopping a licensing board from taking disciplinary action, reactivation can nonetheless be "indicative that the Board, presumably, does not consider a licensee to present an immediate danger in practicing his licensed activity." *Levengood v. Board of Prof. and Occupational Affairs, State Bd. of Veh. Mfrs., Dealers and Salespersons*, 2018 WL 2032234, *5 (Pa. Cmwlth., No. 947 C.D. 201, filed May 10, 2018) (memorandum opinion) *citing Abruzzese v. Bureau of Prof'l & Occupational Affairs, State Bd. of Cosmetology*, 185 A.3d 446 (Pa. Cmwlth. 2018) (court rejected the board's argument that it did not know

---

The board shall have authority to impose disciplinary or corrective measures on a board-regulated practitioner for any or all of the following reasons:

> (1) Failing to demonstrate the qualifications or standards for a license, certification or registration contained in this act or regulations of the board.
>
> * * * *
>
> (4) Having a license or other authorization to practice the profession revoked or suspended or having other disciplinary action taken, or an application for a license or other authorization refused, revoked, or suspended by a proper licensing authority of another state, territory, possession or country, or a branch of the Federal Government.
>
> * * * *
>
> (5) Being unable to practice the profession with reasonable skill and safety to patients by reason of illness, addiction to drugs or alcohol.
>
> * * * *

63 P.S. § 422.41(1), (4) and (5)

DOS Prothonotary:
Sep 20 2024

whether it was safe for the licensee to perform esthetician services where it knew about her drug history and arrest when it granted her a license by virtue of the fact that she had disclosed her arrest and pending criminal charges on her application.)

In the instant matter, the Board was presented with a reactivation application that contained evidence of serious disciplinary action imposed by other jurisdictions, including active license suspensions in Wyoming, South Dakota, Tennessee, Kentucky, New Hampshire, and Michigan. It was the Board's opinion when they reviewed the reactivation application that the reactivation of Applicant's license to practice medicine in this Commonwealth could potentially present an immediate danger to the public. If the Board had simply treated the reactivation of this application as ministerial, without first obtaining additional information about what had occurred in these other states, the Board would be sending the message that they do not consider Applicant to present an immediate danger, which is what occurred in *Levengood.*

Instead, the Board provisionally denied the reactivation application and provided Applicant with the opportunity to appeal the provisional denial and present additional evidence in support of his application, which he ultimately did. Applicant was thus provided with notice and an opportunity to be heard at which time he presented additional evidence for the Board's consideration. Specifically, Applicant testified that he has complied with all five requirements from the Acumen assessment, including ongoing treatment with a psychiatrist and psychologist and the continuation of medication management. Applicant has been diagnosed with cyclothymia, which is a mild condition of bipolar and he has been prescribed medications and is compliant with medications for that condition Additionally, Applicant sees Mark Chase, a psychologist, as part of his aftercare program. In addition to the original Acumen assessment in Utah, Applicant completed another assessment with the Professional Review Network in

DOS Prothonotary:
Sep 20 2024

Lawrence, Kansas, which resulted in the same recommendations as Acumen, all of which Applicant has met.

The hearing in this matter has allowed the Board to obtain the information necessary to move forward with Applicant's reactivation application. Given Applicant's compliance with Acumen and his adherence to appropriately handling his mental health, the Board is without grounds to deny Applicant's reactivation application. However, per *Levengood,* the reactivation of Applicant's license does not provide grounds for estopping the Board from taking disciplinary action against Applicant's license for his violations. Accordingly, based on the foregoing findings of fact, conclusions of law, and discussion, the following Order shall be issued:

DOS Prothonotary:
Sep 20 2024

COMMONWEALTH OF PENNSYLVANIA
DEPARTMENT OF STATE
BEFORE THE STATE BOARD OF MEDICINE

In the Matter of the Reactivation Application for a License to Practice as a Physician and Surgeon of Eric Welling, M.D., Applicant	:	Case No. 24-49-003930

FINAL ORDER

AND NOW, this 20th day of September 2024, in accordance with the foregoing findings of fact, conclusions of law, and discussion, the application seeking reactivation of the license to practice medicine and surgery issued to Applicant, **Eric Welling, M.D., license no. MD477850**, is **GRANTED**.

This order shall take effect immediately.

BY ORDER:

BUREAU OF PROFESSIONAL AND OCCUPATIONAL AFFAIRS

STATE BOARD OF MEDICINE

ARION R. CLAGGETT
ACTING COMMISSIONER

MARK B. WOODLAND, M.S., M.D.
CHAIR

DOS Prothonotary:
Sep 20 2024

Applicant: 9489.0090.0027.6625.8571.93	Eric C. Welling, M.D. 6599 Julien Way Salt Lake, UT 84121
For the Commonwealth:	Jason Anderson, Esquire Prosecuting Attorney Department of State P.O. Box 69521 Harrisburg, PA 17106-9521
Board Counsel:	Dana M. Wucinski, Esquire
Date of Mailing:	September 20, 2024

DOS Prothonotary:
Sep 20 2024